

(49)

Tentative Ruling

Re: ***LS Power Grid California LLC v. Pierre Echtharren, Co-Trustee of the "P & D Trust," Dated September 6, 2006 et al.***
Superior Court Case No. 26CECG01252

Hearing Date: August 20, 2026 (Dept. 502)

Motion: By plaintiff LS Power Grid California, LLC for Order of Prejudgment Possession

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 1255.410, subd. (a).)

Explanation:

Plaintiff LS Power Grid California, LLC ("Plaintiff") moves for an order of prejudgment possession for an easement under Code of Civil Procedure section 1255.410.

Code of Civil Procedure section 1255.410, subdivision (a), requires that a motion under the statute "shall state the date after which the plaintiff is seeking to take possession of the property."

Plaintiff's motion does not state the date after which Plaintiff is seeking to take possession of the property as required by Code of Civil Procedure section 1255.410, subdivision (a). Accordingly, the motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: lmg on 8-19-26 .
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Hamad v. Lee Finance LLC et al.***
Superior Court Case No. 25CECG04812

Hearing Date: August 20, 2026 (Dept. 403)

Motion: By Plaintiff Adel Hamad for an Order to Compel Initial Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and to Deem Requests for Admission Admitted from Defendant Fresno Management Company; Request for Monetary Sanctions

Tentative Ruling:

To deny plaintiff Adel Hamad's motion to compel responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, as verified responses have been provided. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

To deny plaintiff Adel Hamad's motion to Deem Requests for Admission Admitted as verified responses have been provided. (Code Civ. Proc. §2033.280, subd. (c).)

To impose monetary sanctions in favor of plaintiff Adel Hamad and against defendant Fresno Management Company. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c), 2033.280, subd. (c).) Plaintiff Kathy G. Minor is ordered to pay \$1,290.00 in total sanctions to Law Office of Robert Starr within 30 days of the clerk's service of the minute order.

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives any objection to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Where responses are served after the motion is filed, the motion to compel may still properly be heard. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-409.) Unless the propounding party takes the matter off calendar, the court may determine whether the responses are legally sufficient, and award sanctions for the failure to respond on time. (*Ibid.*)

In the case of requests for admission, the propounding party may move for an order that the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) If party fails to timely respond to a propounding party's

request for admissions, the court must grant the propounding party's motion requesting that matters be deemed admitted, unless it finds that the party to whom the requests were directed has served, prior to the hearing on the motion, a proposed response that is substantially in compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc. §2033.280, subd. (c).)

In the case at bench, on March 17, 2026, plaintiff Adel Hamad ("Plaintiff") served Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Admissions, Set One, on defendant Fresno Management Company ("Defendant") by electronic service. Defendant was required to respond by April 20, 2026. The instant motions to compel responses were filed on June 12, 2026. Then, Defendant served verified responses to each of Plaintiff's discovery requests on August 3, 2026. Plaintiff does not argue otherwise in his reply.

The evidence before the court demonstrates that verified responses to Plaintiff's discovery requests have been served. As such, there is nothing for the court to compel. Also, Plaintiff's motion to deem the Request for Admissions, Set One, admitted must be denied as responses have been served.

Sanctions

Generally, conduct subject to sanctions include failing to respond or submit to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) Where a responding party provides the requested discovery after the motion to compel was filed, the court is authorized to award sanctions. (Cal. Rules of Court, rule 3.1348(a).) The court shall impose a monetary sanction against the party or attorney, or both who unsuccessfully makes or opposes a motion to compel responses to interrogatories or requests for production of documents, unless the court finds the one subject to sanctions acted with substantial justification. (Code, Civ. Proc. §§ 2030.290, subd. (c), 2031.300, subd. (c).) Delayed service of responses to a request for admissions will not avoid monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (c).)

Here, Defendant counsel's justification for failing to serve Plaintiff timely responses was that Plaintiff failed to serve the discovery requests upon Defendant's designated recipients and the discovery requests were voluminous. Defendant fails to show that Plaintiff was on notice of Defendant's designated recipients except for the letter provided after service of the discovery requests. In regard to the volume of discovery requests, Defendant fails to specify which discovery request was burdensome or explain why responses could not be served timely. As such, Defendant fails to show substantial justification for the delayed responses.

The court finds it reasonable to award reduced sanctions in favor of Plaintiff and against Defendant in the amount of \$1,290.00 reflecting a reasonable time to prepare the motions at a reasonable fee rate and inclusive of related filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

